

OREGON GENERAL LIABILITY (TORT) REPORT FORM

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Claimant Information

Last Name:	White
First Name:	Robert
Middle Name:	Samuel
Date of Birth:	04/11/1977
Gender:	Male
Claimant Home Phone:	(458) 230-1869
Claimant's email address:	 rsw@rswfire.com

Current Residential Address

Street Address 1:	Post Office Box 334
City:	Reedsport
State:	Oregon
Zip Code:	97467
Is your mailing address different from residential address?	No

Incident Information

Date of Incident:	03/24/2026
Location of Incident:	Siltcoos Work Center, Lane County, Oregon
Description of Incident:	# FORMAL NOTICE OF TORT CLAIM -- ORS 30.275 **To:** Office of the Director, Oregon Department of Administrative Services (Risk Management) **Copy:** OSP Risk, Oregon State Police (re: SP26-097765, litigation hold acknowledged September 1, 2026) **Copy:** Office of the Director, Oregon Parks and Recreation Department; Oregon Parks and Recreation Commission **Copy:** Office of the Governor **From:** Robert Samuel White, P.O. Box 334, Reedsport, Oregon 97467 -- rsw@rswfire.com **Date:** September 3, 2026 --- This is formal notice under ORS 30.275 that I assert claims for damages against the State of Oregon, the Oregon Parks and Recreation Department, and the Oregon State Police, and, in their individual capacities, against the officers and employees named below. Claims under 42 U.S.C. §1983 lie against the individuals, not the public bodies, and require no notice; they are named here because I intend the record to be complete. The injury at my door occurred March 24, 2026, and this notice is within 180 days of it. The conduct that preceded it -- the referral, the assessment ordered without predicate, the database pulls, the covert instruction to my supervisor -- was concealed from me and became known to me on September 3, 2026, when Oregon State Police produced its file. For that conduct, the discovery of the injury and this notice carry the same date. And one injury is ongoing: the permanent bar from public service imposed in March 2025 has never been withdrawn and operates today. The federal claims arising from the bar require no notice and are timely in their own right; 42 U.S.C. §1983 borrows Oregon's two-year limitations period, ORS 12.110. Everything below is established by the state's own documents, produced by Oregon State Police on September 3, 2026 under public records request PR27478 and published in full at: https://oprdivolunteerabuse.org/accountability/osp/01M1M4WF78XJPEJJ48D1JZ4SJ8 ## I. THE CIRCUMSTANCES The referral did not begin this. On March 24, 2025, OPRD dismissed me from volunteer service at Honeyman State Park, and by letter dated March 26, 2025 terminated my service statewide, with no hearing and no process. The letter, signed by its Engagement Programs Manager, states the ground: "the disparaging public comments made about staff regarding your volunteer service" -- in the same paragraph that concedes I am "able to share [my] opinion, perspective and experience as an individual." I understood from the beginning that the bar was permanent, and I have said so publicly for a year. No notice ever stated it to me. The confirmation, when it came, was in a document addressed to the police, not to me. That bar has never been withdrawn. It operates today, and the referral itself restates it as current fact: OPRD's Emergency Manager described me to the police as "dismissed from volunteering with OPRD on 3/25/25 and flagged as ineligible for future service." The police operation was the enforcement arm of that standing exclusion. On March 3, 2026, OPRD Emergency Manager Jamen Lee, copying Deputy Director J.R. Collier, referred me to Oregon State Police Captain Kyle Kennedy of Government and Media Relations. The referral alleged no crime and quoted no threat. Its stated reason was that my letters were "now including the Governor as well as our Director." Petitioning the Governor is the conduct the First Amendment and Article I, section 8 of the Oregon Constitution exist to protect. That is what OPRD reported to the police, and it reported it to the officer whose command manages the Department's relationships with the government and the press. On March 4, Captain Kennedy caused a threat assessment to be ordered "asap." In the produced chain (March 3-6, "Electronic Communications," PR27478), no one at any level -- Captain Kennedy, Lieutenant McQuillan, Sergeant Henderson -- articulates a factual predicate; each passes the referral downward without adding one. What followed, per the production:

- **March 6.** Detective Jake Hyde, a task force officer with the Portland FBI-JTTF, circulated my name to FBI personnel. The same day, after reviewing my archive, he wrote: "nothing is standing out to me more than what Parks and Rec sent you."

- **March 11.** An analyst at the Oregon TITAN Fusion Center, Oregon Department of Justice, documented my activities.

- **March 13.** My DMV record was pulled and distributed, together with a report about me ("ReportRobertWhite.pdf") that has never been produced. This is the source of the date of birth that appeared in Department records ten days before I ever provided it. My Kentucky record reached the Department through a federal criminal-justice information channel, run against a man whose file alleges no crime. That channel is the question OSP Risk routed to its CJIS team on September 1, 2026.

- **March 18–22.** My Forest Service supervisor was instructed not to tell me law enforcement was asking about my whereabouts, while my schedule, vehicle, and satellite images of my residence were gathered.

- **March 23.** Detective Jerred Nelson opened CAD event SP26096984 naming me Suspect and running my Kentucky driver's license. The basis stated in the narrative: "publicly airing grievances."

- **March 24.** One year to the day from my dismissal at Honeyman State Park, two detectives and a federal agent came through a locked federal gate to my home under a plan titled "Hasty Plan for Robert White knock and talk."

They came knowing there was nothing. Detective Nelson's own report concludes I made no direct threats, showed no leakage toward violence, and committed no crime.

The official record of the visit was false. CAD SP26097765 states the visit was "FOR THE FOREST SERVICE." On July 24, 2026, the District Ranger stated in writing that the Forest Service did not initiate the interview and that its role was limited to providing access. The visit was requested by Oregon Parks and Recreation. A false reason was entered in a police record because the real one -- a citizen writing to his Governor -- could not be written down.

The records conduct compounded the injury. On April 3, 2026, the day after my request and litigation preservation notice, the Department answered that no responsive records existed. That answer was false as to records that existed on April 3: both CAD records (March 23 and 24), the referral and order emails (March 3 and 4), Detective Hyde's review (March 6), and the March 13 DMV record and report. Production of the file took five months, an Attorney General petition, and \$157.50, of which the Department now says \$95.00 will be refunded. Four records the production itself identifies remain withheld, including the body-worn camera video of the encounter and the March 13 report. My request for them, made to the officials whose roles answer for them, is on the record.

Separately: the Department's only narrative account of the operation, Detective Nelson's report, was not written until April 15, 2026 -- twenty-two days after the contact and thirteen days after my preservation notice, by an author who knew the file would be read. A record authored after litigation notice is a record-integrity question. That is why Section IV names the audit and revision history.

II. THE INSTITUTIONAL FAILURES

OPRD converted a citizen's petitioning into a police referral, with its Deputy Director copied, through its Safety, Risk and Emergency Management office. OSP allowed its media relations command to originate criminal process. No produced record shows anyone in either agency asking the only question that mattered -- what is the threat -- at any point. The threat-assessment process ran backwards: ordered first, evidence sought afterward, and when the evidence came back empty, executed anyway. A false basis was entered in the official record. The records process then failed at every step a citizen relied on: a false no-records response, a report authored after litigation notice, months of obstruction, and withholding that continues today.

These failures have a control group. I filed an incident report with the U.S. Forest Service on March 27, 2026. Within three days, its Patrol Captain confirmed the identity of the federal agent present. Its District Ranger then stated in writing that the Forest Service did not initiate the interview and that its role was limited to providing access. Asked directly, the Forest Service answered directly. The same questions, put to Oregon State Police, took 163 days, \$157.50, and a petition to the Attorney General -- and the identities of the state officers arrived only inside the September 3 production, in a file that had named me Suspect.

III. THE CLAIMS

Against Detectives Jake Hyde and Jerred Nelson, in their individual capacities, under 42 U.S.C. §1983:

Warrantless entry in violation of the Fourth Amendment. A "knock and talk" rests on the implied license any visitor has to approach a door. There is no such license behind a locked gate on land posted against public entry. They entered anyway, under a written plan, after their own documented review had found nothing.

Violation of the Driver's Privacy Protection Act, 18 U.S.C. §§ 2721 and 2724: my motor vehicle record was obtained and disclosed by Detective Hyde on March 13, and my Kentucky license was run again by Detective Nelson on March 23, in an investigation whose own file alleges no crime and identifies no threat. The Act's law-enforcement exception assumes a law-enforcement function; the file supplies none.

Against Captain Kyle Kennedy, in his individual capacity, under 42 U.S.C. §1983:

The March 4 order. Captain Kennedy's command is Government and Media Relations: its function is the Department's relationships with government officials and the press, not criminal investigation. What he was sent, on March 3, was an email that alleged no crime, quoted no threat, and stated its own reason -- a citizen's letters were reaching the Governor. A safety concern has channels: dispatch, a tip line, a detective division. This went to none of them. It went to the press office, and within a day the press office ordered a threat assessment "asap," supplying no predicate of its own. Criminal process issued from the command that manages publicity, against the citizen generating it, and everything that followed -- the task force, the file, the armed visit -- flowed from that order.

Against Director Lisa Sumption and Deputy Director J.R. Collier of OPRD, in their individual capacities, under 42 U.S.C. §1983:

The choices were theirs. The Deputy Director ordered my correspondence contained to himself in February 2026, was copied on the March 3 referral, and was the named recipient of the letters the referral characterized. The Director is the official whose inclusion in my letters the referral stated as its reason, and the official who declared this matter closed rather than examine it. Both have been on notice of every fact in this letter as it happened -- I wrote it to them, and it is published -- and both maintain, today, the permanent bar and the uncorrected record their agency's referral produced. A supervisor who sets a chain of acts in motion, or who knows of it and lets it run, answers for what it causes. The Director and the Deputy Director are causing the present harm: the bar, the record, and the standing injury to my life here continue by their choice.

Denial of due process in the imposition and maintenance of the bar: a permanent ineligibility flag, recorded in state systems and communicated to law enforcement, imposed and maintained without notice or hearing. The written basis for the dismissal it extends is the March 26, 2025 letter, and the ground that letter states is my speech: "the disparaging public comments made about staff regarding your volunteer service." A permanent exclusion from public service whose stated ground is public comment is the violation, in writing, over the agency's own signature.

First Amendment retaliation, against all five -- Detectives Hyde and Nelson, Captain Kennedy, Director Sumption, and Deputy Director Collier -- in their individual capacities, under 42 U.S.C. §1983:

Retaliation for speech and petitioning protected by the First Amendment -- the same conduct Article I, section 8 of the Oregon Constitution name as protected. The referral from OPRD, the order from Captain Kennedy, the Suspect designation, the surveillance, the visit by the detectives, and the permanent bar the Director and the Deputy Director maintain today were each caused by letters to public officials and a published archive. The retaliation is continuing; the bar remains in force.

These are the individuals presently identified. The four withheld records, and the messages produced with headers and no body, may identify others; the claims extend to them as they are identified.

****Against the public bodies, under ORS 30.275:****

Invasion of privacy, in the pull and interagency distribution of my DMV record and the covert gathering of my schedule, my vehicle, and the location of my home; false light, from a Suspect designation whose stated basis was "publicly airing grievances," carried to my host agency and my supervisor with characterizations the state's own file shows were never supported by any identified statement; negligence and negligent supervision in both agencies; and intentional infliction of emotional distress.

There is a name for what was done. I live in a place with no physical address; they marked my home with a pin on satellite imagery so they could find my door. They chose the day: one year, to the day, from my dismissal. They kept their coming from me through my own supervisor, so I would not see it until they were at my gate. Armed officers came through a locked federal gate to the home of a man their own file said had made no threat and committed no crime. The mapping, the date, the silence, the numbers -- each was a choice, and their purpose was to make me afraid. That is intimidation of the most serious kind, and it was intended to displace me a second time by making my presence here untenable -- untenable not only to me, but to the crew I work beside. The state reached into my workplace, conscripted the people around me into its concealment, and left me to repair what that did to those relationships.

The injury that conduct inflicted is physiological. A body under credible threat of state force changes state and stays changed: months of vigilance, of living and working and answering the door inside the fact that armed men had come once and could come again.

And the harm that does not fit a tort label but is the largest one: I am permanently barred from volunteering in Oregon's state parks. Volunteering is how a citizen helps maintain the public spaces he shares. It is unpaid labor, given freely. I was a new volunteer. The abuse began in my second month; I documented it; and the state dismissed me by telephone and barred me for describing it. The state kept the labor and punished the voice. That is a citizen excluded from participation in the civic life of his own state, by the state, for speaking about it.

IV. PRESERVATION

The litigation hold acknowledged by OSP Risk on September 1, 2026 covers every record associated with these events. For Oregon State Police that includes the audit and revision history for report SP26096984 in its records management system, with any drafts or prior versions; the body-worn camera video; the "OSP Hasty Form Robert White"; the March 13 DMV record and report; and the communications, calendars, and call and text records of the officers named in this notice.

This notice places the same obligation on OPRD: the referral and every communication surrounding it; the March 26, 2025 dismissal letter and the records of the review that produced it; the ineligibility flag itself -- where it is recorded, who entered it, and on what authority; the Deputy Director's correspondence directing the containment of my communications; and all OPRD communications with Oregon State Police, the U.S. Forest Service, the Oregon TITAN Fusion Center, or any law enforcement body concerning me, in every account and medium.

DAS is asked to preserve this notice together with the records of its routing and handling.

V. CLOSING

Nothing in this notice is complicated. A citizen wrote to his government about how its employees treated him. His government answered with a police file, a Suspect designation, a federal task force, and armed men at his door -- and its own records supply no threat, no crime, and no basis but the letters themselves. The one review the file documents found nothing. They came anyway. There is no version of American government in which that is acceptable. The State of Oregon did it, and to this day no one in either agency has said one word of it was wrong. These claims are to prevent them from doing it to the next person.

Correspondence concerning this claim may be sent to the mailing address above. This notice is delivered to the office of the Director of the Department of Administrative Services by certified mail, return receipt requested, with copies by email to the offices listed above.

Respectfully,

Robert Samuel White
P.O. Box 334
Reedsport, Oregon 97467
rsw@rswfire.com
<https://oprdrvoltunteerabuse.org>

Police Report? Yes

Report Number: SP26-097765

Police Agency Name: Oregon State Police

State Agency

Name of State Agency Oregon Parks & Recreation Department

Involved:

Damages

Did injuries occur? Yes

Did property damage occur? No

Attorney Representation

Attorney Representation: No

Bodily Injury Questionnaire

Bodily Injury Questionnaire: IMPORTANT: We are required by federal law to obtain this information. Failure to provide this information will result in delays in resolving your claim. You can find further information at [Centers for Medicare and Medicaid Services - Home Website](#).

Is this related to an Auto Accident? No

Signature

Per ORS 30.275, Risk Management must receive your claim within 180 days from the date of loss.
I declare the foregoing is true and correct to the best of my knowledge.

Claimant Signature: 

Date: 09/08/2026

Files

File	Description	Folder	Attached By	Attach Date	Size
claimant_signature.png	claimant_signature.png		State of Oregon	09/08/2026	6kb